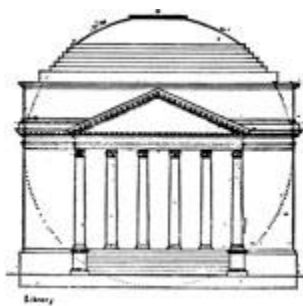




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"SEDITIONOUS DOCTRINES" AND THE "CLEAR AND PRESENT DANGER" RULE*

Part II

By LOUIS B. BOUDIN

IX. THE MANDATE OF AMERICAN COMMUNICATIONS ASSOCIATION V. DOUDS

THE *American Communications*⁷⁸ case involved the provisions of the Taft-Hartley Act which require all labor unions whose members are engaged in interstate commerce to file by their principal officers affidavits with the National Labor Relations Board that they are not members of the Communist Party or any organization affiliated therewith, and that they do not believe in the overthrow of the Government of the United States by force and violence.⁷⁹ Three things, which were decisive of that case, must be noted at the outset. First, the statute was not a criminal statute; no one would go to jail thereunder for belonging to the Communist Party or for believing in or teaching the doctrine of the overthrow of the United States Government by force and violence. Second, the only "sanctions" prescribed were that a union whose officers failed to file such affidavits would be denied what was deemed to be a "privilege",⁸⁰ with a possible deprivation of Communists' chances of becoming labor union officers as a consequence. Third, the Act was one dealing with the regulation of interstate commerce, over which the power of Congress is plenary, that is to say, analogous to that which the states enjoy over intrastate commerce under the police power.

The last point is important, since it brings the *A.C.A.* case, although involving a Federal statute, within the orbit of the rule which was applicable to the *Gitlow*⁸¹ case. It will be recalled that Justice Holmes commenced his opinion in the latter case by reminding us that the powers of the State under the police power are somewhat

*This is the second and final portion of Mr. Boudin's article. The first part appeared in the February, 1952, issue of this Review.

78. *American Communications Association, C. I. O. v. Douds*, 339 U.S. 382 (1950).

79. 29 U.S.C. § 159 (h) (Supp. 1951).

80. Upon failure to comply with the provisions of Section 9(h) the facilities of the National Labor Relations Board and the rights and privileges enjoyed by labor unions under the National Labor Relations Act are denied.

81. *Gitlow v. New York*, 268 U.S. 652 (1925).

broader with respect to the matters covered by the First Amendment than those of the Federal Government. That the broader power of the State may be decisive in certain cases, has been, we believe, clearly demonstrated in the section of this article dealing with the power of the Federal Government, or rather, with its lack of power, with respect to the suppression of violence not amounting to insurrection against the United States.⁸² A state statute in the same language as that of the Smith Act, here involved, might be justified, as it was in the *Gitlow* case, on the ground that there was a danger of riots or disturbances of the peace, even though there was no danger of actual overthrow of the Government. No such consideration could justify an abridgement of freedom of speech or of the press by Congress. But a Federal statute apparently dealing with the problem of force and violence could, by some such process as was employed by the New York Court of Appeals in the *Gitlow* case, be upheld on the ground that it was not really dealing with the problem of the overthrow of the Government of the United States by force and violence but rather with interference with the free flow of interstate commerce. And this is exactly the rationale of the decision in the *A.C.A* case, coupled with the fact, as will be seen further below,⁸³ that the majority of the court construed the statute under consideration in that case as having nothing to do with the problem of freedom of utterance. The purpose of the statute, the court held, was not to punish Communist beliefs or their utterance, but rather the avoidance of political strikes by hiding those beliefs.

Chief Justice Vinson, in his opinion for the majority of the Court, said:

One such obstruction, *which it was the purpose of § 9(h) of the Act to remove, was the so-called "political strike."*⁸⁴ (Emphasis supplied).

Apparently adopting the doctrine announced by the Court of Appeals in the *Dunne*⁸⁵ case that any statute which deals with, or may have an effect upon, the freedom of utterance must justify itself

82. See page 149, *supra*.

83. See page 319, *infra*.

84. American Communications Association, C. I. O. v. Douds, 339 U.S. 382, 388 (1950).

85. *Dunne v. United States*, 138 F.2d 137 (8th Cir.), *cert. denied*, 320 U.S. 790 (1943); see page 175, *supra*.

by a reasonably apprehended danger, he proceeds to show that there was "sufficient danger" justifying such legislation, saying:

Substantial amounts of evidence were presented to various committees of Congress, including the committees immediately concerned with labor legislation, that Communist leaders of labor unions had in the past and would continue in the future to subordinate legitimate trade union objectives to obstructive strikes when dictated by Party leaders, often in support of the policies of a foreign government. . . . At the committee hearings, the incident most fully developed was a strike at the Milwaukee plant of the Allis-Chalmers Manufacturing Company in 1941, when that plant was producing vital materials for the national defense program. A full hearing was given not only to company officials, but also to leaders of the international and local unions involved. Congress heard testimony that the strike had been called solely in obedience to Party orders for the purpose of starting the "snowballing of strikes" in defense plants.⁸⁶

He then proceeds to state the position of the attack upon the statute and of its defense, as follows:

The unions contend that the necessary effect of § 9 (h) is to make it impossible for persons who cannot sign the oath to be officers of labor unions. They urge that such a statute violates fundamental rights guaranteed by the First Amendment: the right of union officers to hold what political views they choose and to associate with what political groups they will, and the right of unions to choose their officers without interference from government. The Board has argued, on the other hand, that § 9 (h) presents no First Amendment problem because its sole sanction is the withdrawal from noncomplying unions of the "privilege" of using its facilities.⁸⁷

And he adds the comment:

Neither contention states the problem with complete accuracy. . . . The fact is that § 9 (h) may well make it difficult for unions to remain effective if their officers do not sign the affidavits. How difficult depends upon the circumstances of the industry, the strength of the union and its organizational discipline. We are, therefore, neither free to treat § 9 (h) as if it merely withdraws a privilege gratuitously granted by the Government, nor able to consider it a

86. *American Communications Association, C. I. O. v. Douds*, 339 U.S. 382, 388 (1950).

87. *Id.* at 389.

licensing statute prohibiting those persons who do not sign the affidavit from holding union office.⁸⁸

The Chief Justice then proceeds to make the constitutional point referred to above, saying:

There can be no doubt that Congress may, under its constitutional power to regulate commerce among the several States, attempt to prevent political strikes and other kinds of direct action designed to burden and interrupt the free flow of commerce.⁸⁹

And to justify the singling out of Communists and particular beliefs as a ground for legislation under that constitutional power, he adds:

Political affiliations of the kind here involved, no less than business affiliations, provide rational ground for the legislative judgment that those persons proscribed by § 9 (h) would be subject to "tempting opportunities" to commit acts deemed harmful to the national economy. In this respect, § 9 (h) is not unlike a host of other statutes which prohibit specified groups of persons from holding positions of power and public interest because, in the legislative judgment, they threaten to abuse the trust that is a necessary concomitant of the power of office.⁹⁰

He then proceeds to discuss the real constitutional problem involved, the apparent clash between the plenary power of Congress to regulate interstate commerce and the prohibitions of the First Amendment:

. . . the problem is this: Communists, we may assume, carry on legitimate political activities. *Beliefs are inviolate*. *Cantwell v. Connecticut*, 310 U.S. 296, 303 . . . (1940). Congress might reasonably find, however, that Communists, unlike members of other political parties, and persons who believe in overthrow of the Government by force, unlike persons of other beliefs, represent a continuing danger of disruptive political strikes when they hold positions of union leadership. By exerting pressures on unions to deny office to Communists and others identified therein, § 9 (h) undoubtedly lessens the threat to interstate commerce, but it has the further necessary effect of discouraging the exercise of political rights protected by the First

88. *Id.* at 390.

89. *Ibid.*

90. *Id.* at 392.

Amendment. Men who hold union offices often have little choice but to renounce Communism or give up their offices. Unions which wish to do so are discouraged from electing Communists to office. To the grave and difficult problem thus presented we must now turn our attention.⁹¹ (Emphasis supplied).

That in resolving conflicts between a specific grant of power to the Federal Government, or an inherent power of *any* government to self-protection, and rights protected by the First Amendment, there must not only be shown a clear and present danger, but also that the danger is *serious*, is made clear by the Chief Justice in a later passage of his opinion:

So far as the Schenck Case itself is concerned, imminent danger of any substantive evil that Congress may prevent justifies the restriction of speech. Since that time this Court has decided that however great the likelihood that a substantive evil will result, restrictions on speech and press cannot be sustained unless the evil itself is "substantial" and "relatively serious," . . . ⁹²

On the other hand, legitimate attempts to protect the public, not from the remote possible effects of noxious ideologies, but from present excesses of direct, active conduct are not presumptively bad because they interfere with and, in some of its manifestations, restrain the exercise of First Amendment rights.⁹³

The solution of the problem, insofar as the case there before the court was concerned, is found in the assertion that the statute is not *aimed* at the curbing or abridgement of the freedoms guaranteed by the First Amendment. This is the nub of the majority decision. Says the Chief Justice:

But we have here no statute which is either frankly aimed at the suppression of dangerous ideas nor one which, although ostensibly aimed at the regulation of conduct, may actually "be made the instrument of arbitrary suppression of free expression of views." . . . There are here involved none of the elements of censorship or prohibition of the dissemination of information that were present in the cases mainly relied upon by those attacking the statute. The "discouragements" of § 9 (h) proceed not against the groups or

91. *Id.* at 393.

92. *Id.* at 397.

93. *Id.* at 399.

beliefs identified therein, but only against the combination of those affiliations or beliefs with occupancy of a position of great power over the economy of the country. Congress has concluded that substantial harm, in the form of direct, positive action, may be expected from that combination. In this legislation, Congress did not restrain the activities of the Communist Party as a political organization; *nor did it attempt to stifle beliefs*.⁹⁴ (Emphasis supplied).

The position of the majority is summarized in the following passages of Chief Justice Vinson's opinion:

By this means they (i.e., Justices Holmes and Brandeis) sought to convey the philosophy that, under the First Amendment, the public has a right to every man's views and every man the right to speak them. Government may cut him off only when his views are no longer merely views but threaten, clearly and imminently, to ripen into conduct against which the public has a right to protect itself.

But the question with which we are here faced is not the same one that Justices Holmes and Brandeis found convenient to consider in terms of clear and present danger. *Government's interest here is not in preventing the dissemination of Communist doctrine or the holding of particular beliefs because it is feared that unlawful action will result therefrom if free speech is practiced.* Its interest is in protecting the free flow of commerce from what Congress considers to be substantial evils of conduct that are *not the products of speech at all*. § 9 (h), in other words, does not interfere with speech because Congress fears the consequences of speech; it regulates harmful *conduct* which Congress has determined is carried on by persons who may be identified by their political affiliations and beliefs. *The Board does not contend that political strikes, the substantive evil at which § 9 (h) is aimed, are the present or impending products of advocacy of the doctrines of Communism or the expression of belief in overthrow of the Government by force.* On the contrary, it points out that such strikes are called by persons who, so Congress has found, have the will and power to do so *without* advocacy or persuasion that seeks acceptance in the competition of the market.* Speech may be fought with speech. *Falsehoods and fallacies must be exposed, not suppressed, unless there is not sufficient time to avert the evil consequences of noxious doctrine by argument and education.* That is the command of the First Amendment. But force may and must be met with force. Section 9 (h) is designed to protect the public not against what

94. *Id.* at 402.

Communists and others identified therein advocate or believe, but against what Congress has concluded they have done and are likely to do again.⁹⁵ (*Italicized by the Court; other emphasis added).

Mr. Justice Black dissented in an opinion which will warm the hearts of all those who cherish our American heritage. Nor was he the only dissenter. Mr. Justice Frankfurter, in his "concurring" opinion, actually dissents from that portion of the majority opinion which validates that part of the statute dealing with beliefs, instead of membership or affiliation, on the ground that "Congress has cast its net too indiscriminately."⁹⁶ Mr. Justice Jackson expressly dissented in part, and made his dissent from the validation of the provisions of the statute other than those based on membership in or affiliation with the Communist Party a matter of principle, drawing even more sharply the distinction stated in the majority opinion between control of *action* and the control of *thought*. At the outset of his opinion Mr. Justice Jackson says:

In order that today's decision may not be useful as a precedent for suppression of any political opposition compatible with our free institutions, I limit concurrence to grounds and distinctions explicitly set forth herein, without which I should regard this Act as unconstitutional.⁹⁷

He therefore makes clear that his concurrence in the decision with respect to that portion of the oath required of trade union officers which denies membership in or affiliation with the Communist Party is based on the special functions of labor unions under the National Labor Relations Act. He says:

I cannot believe that Congress has less power to protect a labor union from Communist Party domination than it has from employer domination. This Court has uncompromisingly upheld power of Congress to disestablish labor unions where they are company-dominated and to eradicate employer influence, even when exerted through spoken or written words which any person not the employer would be free to utter.

Congress has conferred upon labor unions important rights and powers in matters that affect industry, transport, communications,

95. *Id.* at 395.

96. *Id.* at 419.

97. *Id.* at 422.

and commerce. *And Congress has not now denied any union full self-government nor prohibited any union from choosing Communist officers. It seeks to protect the union from doing so unknowingly.*⁹⁸ (Emphasis supplied).

He then is careful to point out what the Act *does not* prohibit, saying:

The Act does not suppress or outlaw the Communist Party, nor prohibit it or its members from engaging in any aboveboard activity normal in party struggles under our political system. It may continue to nominate candidates, hold meetings, conduct campaigns and *issue propaganda*, just as other parties may. No individual is forbidden to be or to become a philosophical Communist or a full-fledged member of the Party. *No one is penalized for writing or speaking in favor of the Party or its philosophy.*⁹⁹ (Emphasis supplied).

Mr. Justice Jackson then proceeds to state the distinction which requires both his concurrence and his dissent thus:

I conclude that we cannot deny Congress power to take these measures under the Commerce Clause to require labor union officers to *disclose* their membership in or affiliation with the Communist Party.

Congress has, however, required an additional disclaimer, which in my view does encounter serious constitutional objections. A union officer must also swear that "he does not believe in . . . the overthrow of the United States Government by force or by any illegal or unconstitutional methods."

If Congress has power to condition any right or privilege of an American citizen upon disclosure and disavowal of belief on any subject, it is obviously this one. But the serious issue is whether Congress has power to proscribe any opinion or belief *which has not manifested itself in any overt act.*¹⁰⁰ (Emphasis supplied).

. . . *I know of no situation in which a citizen may incur civil or criminal liability or disability because a court infers an evil mental state where no act at all has occurred.* . . .

Our Constitution explicitly precludes punishment of the malignant mental state alone as treason, most serious of all political crimes, of

98. *Id.* at 433.

99. *Id.* at 434.

100. *Id.* at 435-437.

which the mental state of adherence to the enemy is an essential part. It requires a duly witnessed overt act of aid and comfort to the enemy. *Cramer v. United States*, 325 U.S. 1 . . . It is true that in England of olden times men were tried for treason for mental indiscretions such as imagining the death of the king. But our Constitution was intended to end such prosecutions.¹⁰¹ (Emphasis supplied).

But the decision here under consideration actually punishes the defendants for "imagining" the death of the capitalist system. Again it must be borne in mind that under the Program of the Communist International, which is the *piece de resistance* of the prosecution in this case, a national Communist Party is only permitted to engage in the kind of action which Congress would have a right to prohibit or punish in a situation where the capitalist system has become so enfeebled as to be a mere "push-over"; and the *rationale* of the conviction is that the Communists believe that such a situation will only arise sometime in the future. We therefore have not only a case of imagining the king's death, but that of imagining the death of an immortal king—or at least of a king whose death is highly improbable.

The immortality of American capitalism, or at least its robust health, is contrasted by Mr. Justice Jackson with the utter feebleness of the Communist Party of the United States. On this point he says:

The Communist program does not presently, nor in foreseeable future elections, commend itself to enough American voters to be a substantial political force. Unless the Communist Party can obtain some powerful leverage on the population, it is doomed to remain a negligible factor in the United States. . . .

*The Communist Party has sought to gain this leverage and hold on the American population by acquiring control of the labor movement. . . .*¹⁰²

This labor leverage, however, usually can be obtained only by concealing the Communist tie from the union membership. Whatever grievances American workmen may have with American employers, they are too intelligent and informed to seek a remedy through a Communist Party which defends Soviet conscription of labor, forced labor camps and the police state. Hence the resort to concealment,

101. *Id.* at 437.

102. *Id.* at 430.

and hence the resentment of laws to compel disclosure of Communist Party ties. The membership is not likely to entrust its bargaining power, its records, and its treasury to such hands. . . . ¹⁰³

X. THE SMITH ACT IN THREE COURTS

One of the curious and disturbing facts in the *Communist Eleven* case is that the Court of Appeals sustained the conviction on an entirely different interpretation of the Act than that applied by the trial court; and the Supreme Court, while apparently adopting the theory of the Court of Appeals, actually left the matter in much confusion. Judge Medina, who is an able lawyer, strove manfully to save the constitutionality of the Smith Act by giving it an interpretation which actually changed its content from that which was obviously intended by Congress.

It must be borne in mind that in this case there were no such complicating facts as those that were present in the *Dunne*¹⁰⁴ case—incitement, or the conspiracy to incite disobedience in the armed forces. The only part of the Smith Act which was applicable is that which forbids in bald terms the “teaching and advocacy” of the overthrow of the United States Government by force and violence.¹⁰⁵ Obviously, Judge Medina thought that literally construed the statute would be unconstitutional. He therefore interpreted it as if it dealt not with merely teaching and advocacy of a doctrine, but with *doing something in order to give effect to such teaching and advocacy*. Judge Medina specifically instructed the jury that mere “teaching and advocacy” of the propriety or necessity of the overthrow of the United States Government by force and violence was not prohibited by the Smith Act. In order to find a violation of the statute, Judge Medina told the jury, they must find that the conspiracy was not merely to “teach and advocate”, but to *act*. He charged:

You must be satisfied from the evidence beyond a reasonable doubt that the defendants had an intent to cause the overthrow or destruction of the Government of the United States by force and violence, and that it was with this intent and for the purpose of furthering that objective that they conspired both (1) to organize the Communist Party of the United States as a group or society who teach and

103. *Id.* at 431.

104. See page 174, *supra*.

105. 18 U.S.C. § 2385 (Supp. 1951).

advocate the overthrow or destruction of the Government of the United States by force and violence and (2) to teach and advocate the duty and necessity of overthrowing or destroying the Government of the United States by force and violence. *And you must further find that it was the intent of the defendants to achieve this goal of the overthrow or destruction of the Government of the United States by force and violence as speedily as circumstances would permit it to be achieved.*

In further construction and interpretation of the statute I charge you that it is not the abstract doctrine of overthrowing or destroying organized government by unlawful means which is denounced by this law, but the *teaching and advocacy of action for the accomplishment of that purpose, by language reasonably and ordinarily calculated to incite persons to such action.*¹⁰⁶ (Emphasis supplied).

This construction raised the insuperable difficulty pointed out by Professor Nathanson that these defendants had never been indicted for such a crime as that which was defined by the statute as interpreted by Judge Medina.^{106a} There is nothing in the indictment about the defendants conspiring to cause the overthrow of the Government of the United States by force and violence. Furthermore, as thus construed, it would be necessary for a conviction under the Smith Act that there be evidence of some *action*. But there was no such evidence, since all the evidence was as to what was *taught* in the Communist schools. The Court therefore resorted to the evidence of "secrecy", as a circumstance upon which the jury might base a finding of *preparation for action*. Judge Medina instructed the jury as follows:

That is why it is so important for you to weigh with scrupulous care the testimony concerning secret schools, false names, devious ways, general falsification and so on, all alleged to be in the setting of a huge and well disciplined organization, spreading to practically every State of the Union and all the principal cities, and industries.¹⁰⁷

Aside from the fact that the "alleged to be" obviously referred to the claims of counsel for the Government rather than to the

106. United States v. Foster, 9 F.R.D. 367, 391 (S.D. N.Y. 1949).

106a. Nathanson, *The Communist Trial and the Clear-and-Present Danger Test*, 63 HARV. L. REV. 1167, 1172 (1950) (reprinted by permission Harv. L. Rev. Ass'n).

107. *Ibid.*

evidence, this question of secrecy raises two important questions, one of fact and one of civil liberties under the Constitution. Under the first head it should be observed that the secrecy referred to is the flimsiest foundation of fact on which a finding of conspiracy could be made. It is a historic fact that secrecy has been an immemorial practice in the labor movement under conditions similar to those which have prevailed in this country since World War I. Speaking of the British trade union movement during the second quarter of the 19th Century, Mr. E. Lipson, the well known English historian, writes:

The first ground of complaint against the trade unions was their secrecy. The privacy in which they shrouded their proceedings, and the oaths they imposed, were inspired originally no doubt by motives of safety in an era when it was illegal to hold meetings; but critics of the unions declared that secrecy was favoured because it influenced the minds of the ignorant. The ceremony of initiation into the society was designed to impress the superstitious fears of uneducated members. A pamphlet published in 1834 describes the reception of members into the Wool Combers' Union. The scene, we are told, is usually the first floor of a tavern and the time eight or nine in the evening. On one side of the apartment is a skeleton, above which is a drawn sword and a battle axe; and in front stands a table upon which lies a Bible. The principal officers of the union are clothed in surplices. The proceedings open with a prayer, then the workmen who are about to be made members are admitted with their eyes bandaged. After various preliminaries the bandages are removed from the eyes of the strangers, and they are placed opposite the skeleton. An oath is taken upon the Bible, in which they bind themselves never to "act in opposition to the brotherhood in any of their attempts to support wages," nor to disclose the proceedings of the lodge. The oath ends with an imprecation on the violator: "May what is now before me plunge my soul into the everlasting pit of misery."¹⁰⁸

It is safe to say that at no time in the history of English labor was there as much reason for secrecy by trade unions as there was for communists in this country during the past thirty years. Beginning with the Lusk Committee report on the Rand School, followed by the publication by the Committee of the name of a postal employee who subscribed to the literature of the Rand School

108. LIPSON, *THE GROWTH OF ENGLISH SOCIETY* 403 (1st ed. 1949).

in his wife's name because he was a postal employee, down to the recent incident of Jean Muir, when that well-known actress was dropped from a radio program because a volunteer "committee" had denounced her as a fellow traveler, which accusation turned out to be utterly untrue, this was a period of white terror at least as far as communists are concerned. And it is significant of the present rising tide of hysteria that so able a jurist as Judge Medina failed to call to the attention of the jury in instructing them on the point of secrecy the circumstances which might justify it.

More important, because it relates to the general subject rather than the particular case here under consideration, is the question of "secrecy" from the point of view of the purpose of the First Amendment. As pointed out by Professor Nathanson,¹⁰⁹ the right to confer in secret under the protection of privacy is itself an important element in the right of free speech and free assembly. From the point of view of the subject matter of this article it is much more important that the subject of the "clear and present danger" was disposed of in the following sentence:

If you are satisfied that the evidence establishes beyond a reasonable doubt that the defendants, or any of them, are guilty of a violation of the statute, as I have interpreted it to you, I find as matter of law that there is sufficient danger of a substantive evil that the Congress has a right to prevent to justify the application of the statute under the First Amendment of the Constitution.¹¹⁰

At first glance the language looks very much like that of *Schenck v. United States*.¹¹¹ However, on close examination it will be found that the heart of the rule, the words "clear and present," had been cut out and the word "sufficient" substituted in its place. The rule actually applied is not that of the *Schenck* case but rather that of the *Dunne*¹¹² case. Obviously, the Court accepted the theory of the prosecution, based on the decision in the *Dunne* case, that where the statute deals with speech or writing the "clear and present danger" rule does not apply, although the enactment must be justified by some existing or reasonably apprehended danger which Congress has a right to avert. It must be borne in mind that the existing or

109. See note 106a *supra*.

110. *United States v. Foster*, 9 F.R.D. 367, 392 (S.D. N.Y. 1949).

111. 249 U.S. 47, 52 (1919).

112. *Dunne v. United States*, 138 F.2d 137 (8th Cir.), *cert. denied*, 320 U.S. 790 (1943).

apprehended danger which justified the enactment of the statute in 1940 does not necessarily justify its application at a subsequent time when such danger may have been completely dissipated. However, Judge Learned Hand, speaking for the Court of Appeals, and five of the Justices of the Supreme Court who voted for affirmance, having come to the conclusion that the "clear and present danger" rule applied to the case, treated this statement by Judge Medina as if he held as a matter of law that at the time of the commission of the offense charged in the indictment there was a "clear and present danger" of the substantive evil which Congress has a right to prevent, that is to say of the forcible overthrow of the Government of the United States by force and violence, resulting from the advocacy of the doctrines taught by the Communists "as a rule of action" which they were ready to apply as soon as an opportunity offered itself.¹¹³ This brings us to the fortunes of the case, and particularly to the treatment of the "clear and present danger" rule in the two higher courts.

The Court of Appeals was unanimous in its affirmance of the conviction,¹¹⁴ but its members differed on the applicability of the "clear and present danger" rule. Judge Chase, dissenting in part, held that under the decision in the *Gitlow* case the rule did not apply to a statute which made the use of certain language criminal and that the decision in the *Gitlow* case was still the law.¹¹⁵ The position of the majority, Chief Judge Learned Hand writing, is not so clear. It would be tedious, and to us, because of our high

113. Actually, this interpretation makes nonsense of Judge Medina's statement. For if the "clear and present danger" rule applied to the offenses defined in the Smith Act, it was part of that Act, and therefore part of its interpretation. If Judge Medina had so interpreted the statute, his statement would contain incongruities, of which so careful a lawyer as Judge Medina could hardly be guilty. He could not have referred to a "violation of the statute as I have interpreted it to you," since in his interpretation of the statute to the jury he had not included the "clear and present danger" rule as a requirement of the offense defined thereby. And he could certainly not have predicated his instruction that the statute applied on a previous finding of guilt under the statute. *If Judge Medina had thought that the "clear and present" danger rule applied, he would have instructed the jury that if they find certain facts, then they could find guilt.*

114. *United States v. Dennis*, 183 F.2d 201, 234 (2d Cir. 1950).

115. He did, however, make a reservation in the case of a prosecution for mere membership in the Communist Party: "If this statute made it criminal to belong to the Communist Party, then that question might arise." Just what this reservation means either as a matter of practice or as a matter of theory, it is hard to say.

regard for Judge Hand's past, extremely painful, to follow his tortuous course in the discussion of this problem. We shall therefore merely point out briefly the highlights of his opinion. He commences the discussion by pointing out that the "clear and present danger" rule was an innovation introduced by Justice Holmes in the *Schenck*¹¹⁶ case. This is literally true, but it is equally true that there had been no previous occasion for the formulation of such a rule. He then proceeds on his tortuous course of examining the various cases from *Schenck* to *Douds*¹¹⁷ until the whole thing becomes under his hands "a thing of shreds and patches," a mere phrase without real content or definite meaning. The *Douds* case seems to have given him considerable trouble, as well it might, but he found solace in the fact that Chief Justice Vinson's opinion in that case warned against using the rule "as a mechanical test . . . without regard to the context of its application."¹¹⁸ Just why this should be considered significant with respect to a rule which is obviously not self-executing, since its application depends on circumstances which must of necessity vary from time to time and from place to place, is not quite clear. But the quotation is significant of Judge Hand's attitude towards the rule, which is certainly not very friendly, to say the least.

Judge Hand therefore proceeds to give the rule a definition which definitely and irrevocably emasculates it of any meaningful content. Ignoring the "clear" of the rule and definitely rejecting its "present" he substitutes a sort of sliding scale based on a quasi-mathematical formula. It will be recalled that in the later decisions the Supreme Court said not only that danger must be "clear and present", but that it must be serious. In other words, even a "clear and present danger" of bringing about an unimportant substantive evil will not justify any abridgement of the freedoms guaranteed by the First Amendment. In order therefore to justify an abridgement of those freedoms the substantive evil to be prevented must be serious, and the danger of its following the use of the freedom involved, *clear and present*. This, says Judge Hand, will not do, and those who preach such a doctrine are accused of "indifference to those who come after us." The true measure of the constitutionality of the

116. See note 2 *supra*.

117. *American Communications Association, C. I. O. v. Douds*, 339 U.S. 382 (1950).

118. *Id.* at 394.

invasion of the rights protected by the First Amendment must be measured by "the gravity of the 'evil' discounted by its improbability." And in order that there should be no mistake about it, he adds, "We have purposely substituted 'improbability' for 'remoteness', because that must be the right interpretation." And since the evil of the destruction of our Government by force and violence is of such a high degree as to reach the Absolute, the improbability by which it could possibly be discounted must reach the point of Zero.

Nevertheless, Judge Hand proceeds to show that the overthrow of our Government by force and violence during the year 1948 had some degree of probability and he proceeds to prove this, not from the evidence in the case, but from the history of the last thirty years. Said he:

We need not say that even so thoroughly planned and so extensive a confederation would be a "present danger" at all times and in all circumstances; the question is how imminent: that is, how probable of execution—it was in the summer of 1948, when the indictment was found. We must not close our eyes to our position in the world at that time. By far the most powerful of all the European nations had been a convert to Communism for over thirty years; its leaders were the most devoted and potent proponents of the faith; no such movement in Europe of East to West had arisen since Islam. Moreover in most of West Europe there were important political Communist factions, always agitating to increase their power; and the defendants were acting in close concert with the movement. The *status quo*, hastily contrived in 1945, was showing strains and tensions, not originally expected. Save for the unexpected success of the airlift, Britain, France and ourselves would have been forced out of Berlin, contrary to our understanding of the convention by which we were there. We had become the object of invective upon invective; we were continuously charged with aggressive designs against other nations; our efforts to reestablish their economic stability were repeatedly set down as a scheme to enslave them; we had been singled out as the chief enemy of the faith; we were the eventually doomed, but the still formidable, protagonist of that decadent system which it was to supplant.¹¹⁹

If this is not to be taken as empty rhetoric or as an appeal to passion, it must be taken to mean that the history of the past "thirty

119. *United States v. Dennis*, 183 F.2d 201, 213 (2d Cir. 1950).

years or more" proves that the Communists practiced what they preached, and that their efforts had been frequently crowned with success. We shall have something to say about Judge Hand's history after we have considered the fortunes of the case in the Supreme Court.

The Supreme Court affirmed the conviction by a vote of six to two, Justices Douglas and Black dissenting.¹²⁰ Five opinions were written by five of the Justices, but no five Justices united on one opinion. There was, therefore, really no "majority" opinion in the usual sense of the word. The opinion written by the Chief Justice was concurred in by Justices Reed, Burton and Minton, and may therefore be referred to as the majority opinion. Justices Frankfurter and Jackson wrote concurring opinions, but neither agreed with the Chief Justice's "majority" opinion. Justices Douglas and Black wrote dissenting opinions. Before discussing these opinions it is important to note that the Supreme Court had granted only limited review, which excluded the review of the evidence. The "majority" opinion, as well as that of Mr. Justice Frankfurter, specifically stressed the limited nature of the review permissible under these circumstances. Notwithstanding this welter of opinion, for each of the opinions for affirmance is long, and Mr. Justice Frankfurter's opinion very long, it is difficult to say just what is the present status of the "clear and present danger" rule. In the following, we shall, therefore, discuss these opinions for two purposes only—first, in order to test their soundness, and second, for any possible guess as to the effect of these opinions on the future fortunes of the rule in the Supreme Court in a case in which full review of the facts is had.

In order to appreciate the limited applicability of the language used in the opinions of the Justices voting for affirmance, particularly the language used by Chief Justice Vinson for himself and the three Justices who joined with him, and the language used by Mr. Justice Frankfurter, we must commence this discussion by a statement of the assumptions of fact to which the opinions related. It must be stated right here that these assumptions have no relation whatever to the crime charged in the indictment or to the evidence adduced at the trial. For the "majority" of the Court assumed that the defendants in this case *were not* tried for teaching or advocating a doctrine, but for forming a conspiracy to overthrow the Government

120. *Dennis v. United States*, 341 U.S. 494 (1951).

of the United States by force and violence and lying in wait for an opportunity to carry out this design. Obviously, this had nothing to do with the documents offered in evidence at the trial as outlined above¹²¹ which were relied upon by the Government in its brief in the Court of Appeals for the affirmance of the conviction. As already stated, the Government's position in the Court of Appeals was that the documents were sufficient to prove the charge, and that the oral evidence was merely corroborative of the documentary evidence. Had the Court granted full review it would have been incumbent upon it to examine the documents, analyze the doctrines preached therein, and decide whether the preaching of the doctrines gleaned from the documents could sustain a conviction under the Smith Act. By granting only limited review it saved itself the difficulty and annoyance of having to do all of this, and it was left free to decide the case, including the applicability or non-applicability of the "clear and present danger" rule, without any reference to the charge of teaching and advocating the doctrines in question. But by so doing it deprived the discussion of any basis of reality, since, as Justice Holmes warned us long ago, general statements do not rule concrete cases. Nevertheless, as already stated, these opinions are before us and we must discuss them if for no other purpose than as the basis of a surmise, or guess, as to the future fortunes of the "clear and present danger" rule. The assumptions upon which the affirming Justices proceeded are thus stated by the Chief Justice in his opinion:

. . . That court (*i.e.*, the Court of Appeals) held that the record in this case amply supports the necessary finding of the jury that petitioners, the leaders of the Communist Party in this country, were unwilling to work within our framework of democracy, but intended to initiate a violent revolution whenever the propitious occasion appeared.¹²²

Having thus assumed that the evidence justified the jury in finding that the defendants conspired to overthrow the Government of the United States by force and violence and were merely waiting for an opportunity to do so, the Chief Justice went on to declare:

121. See page 179, *supra*.

122. *Id.* at 497.

. . . We reject any principle of governmental helplessness in the face of preparation for revolution, which principle, carried to its logical conclusion, must lead to anarchy. *No one could conceive that it is not within the power of Congress to prohibit acts intended to overthrow the Government by force and violence. . . .*¹²³ (Emphasis supplied).

Having stated this truism, the Chief Justice proceeded to state what the real question before the Court was.

. . . The question with which we are concerned here, is not whether Congress has such *power*, but whether the *means* which it has employed conflict with the First and Fifth Amendments to the Constitution.¹²⁴ (Emphasis supplied).

The Chief Justice then commenced a discussion of the applicability of the First Amendment to the case at bar by stating that the Supreme Court must interpret the Smith Act in a manner to save its constitutionality. The constitutionality of the statute was saved, says the Chief Justice, by Judge Medina's instructions to the jury that it does not prohibit "*teaching and advocacy in the realm of ideas*." Had the Chief Justice stopped at this point there could be little argument on points of legal doctrine, whatever criticism there might be of its application to the case at bar. But the Chief Justice proceeded to a discussion of the "clear and present danger" rule in its applicability to "teaching and advocacy in the realm of ideas," and the limitations which must be placed upon the freedoms guaranteed by the First Amendment by "other values and considerations." This led him to a discussion of the adjudicated cases, which might be instructive if he had attempted to apply them to the actual facts in the case, but has little or no value whatever in view of the factual situation to which they were intended to relate. It is worthwhile, however, to state here that an examination of the cases led the Chief Justice and those who joined in his opinion to the same conclusion Judge Learned Hand had reached and that they adopted his quasi-mathematical formula as the true measure of the applicability of the "clear and present danger" rule to any case, including cases of mere *teaching and advocacy* in the realm of ideas, *at least in the historical*

123. *Id.* at 501.

124. *Ibid.*

conditions in which Judge Hand formulated that rule. Referring to the earlier cases and their inapplicability to the *present historical situation*, the Chief Justice said:

They (*i.e.*, the Courts, or Justices, who decided or dissented in the earlier cases) were not confronted with any situation comparable to the instant one—the development of an apparatus designed and dedicated to the overthrow of the Government, in the context of world crisis after crisis.

He then added:

Chief Judge Learned Hand, writing for the majority below, interpreted the phrase as follows: “In each case (courts) must ask whether the gravity of the ‘evil’, discounted by its improbability, justifies such invasion of free speech as is necessary to avoid the danger.” We adopt this statement of the rule. As articulated by Chief Judge Hand, it is as succinct and inclusive as any other we might devise at this time. It takes into consideration those factors which we deem relevant, and relates their significances. More we cannot expect from words.¹²⁵

The decision of the Court, according to the opinion of the “majority,” thus depends on three elements: (1) an assumption that the jury found the defendants guilty of a conspiracy to overthrow the Government of the United States by force and violence at the first opportunity offered; (2) an assumption that the evidence supported the jury’s findings; and (3) the application of Judge Hand’s quasi-mathematical formula of the meaning of the “clear and present danger” rule. But even such a reading of the “clear and present danger” rule coupled with the two assumptions still makes the position of the Court untenable; and Mr. Justice Douglas had no difficulty in punching it full of holes.

Even Judge Hand’s formulation of the “clear and present danger” rule still makes it necessary that there be *some* degree of probability of the substantive evil’s coming to pass through the efforts of the defendants, and there is no way of postulating the probability of such an occurrence on the basis of the proof even as *assumed* by the Court. In discussing the history of the Smith Act, Judge Hand says that it was evidently modeled on the New York “anarchist”

125. *Id.* at 510.

statute which was before the Court in the *Gitlow* case. But, obviously, there is a difference between an anarchist who has formed a design to commit a terroristic act, such as is contemplated by the New York "anarchist" statute, or a man who has formed a design to commit an act of sabotage, such as was contemplated by the California statute involved in the *Whitney* case, lying in wait for an opportunity to carry out his design, and a group of people forming a design to overthrow the Government of the United States by force and violence lying in wait for *their* opportunity. All that the anarchist who killed President McKinley had to do to carry out his design was to wait for President McKinley's appearance in public in order to fire the fatal shot. Similarly, a person who has formed a design to commit an act of sabotage may easily find the opportunity to do so, or at least it would be difficult to say that it was "improbable" that he would find such an opportunity. But in the case of a conspiracy to overthrow the Government of the United States by force and violence, the utter improbability of the conspirators' carrying out their design is obvious. No "crisis" in our international affairs could possibly offer such an opportunity in view of the many expressions of the members of the Court in earlier cases as to the utter impotence of the Communist Party in the United States, particularly Mr. Justice Jackson's statements in the *Doubs* case. No amount of rhetoric about the "widespread conspiracy" and the discipline of the Communist Party membership could do away with this basic fact. It must be borne in mind that the question of the applicability of the "Communist affidavit" arose at a time *subsequent* to the time when the defendants in the *Communist Eleven* case are supposed to have committed their offense. Surely, the "crisis" in our international relations at the time involved in the *Doubs* case was no less acute than it was between 1945 and 1948 when the defendants at bar were supposed to have violated the Smith Act. Nay, according to the theory of the Court, it must have increased. The fallacy of the reasoning of the "majority" of the Court even on its own premises was therefore easily exposed by Mr. Justice Douglas.

Mr. Justice Douglas begins his opinion with the following statement:

If this were a case where those who claimed protection under the First Amendment were teaching the techniques of sabotage, the

assassination of the President, the filching of documents from public files, the planting of bombs, the art of street warfare, and the like, I would have no doubts. . . .¹²⁶

But not only were the defendants in this case not indicted for such an offense on the face of the indictment, no such offense was *charged* or *proven* against them even according to the "majority" of the Court, after its refusal to examine the evidence in the case. This is hole number one, and it is a big one. It is this gaping hole in the reasoning of the "majority" which evidently compelled Justices Frankfurter and Jackson to find other reasons for affirming the conviction. Let us therefore examine *their* opinions in order to see whether they offer more substantial grounds for the affirmance than were offered by the Chief Justice and those who joined in his opinion.

Before discussing Mr. Justice Frankfurter's grounds for affirmance, we must call attention to his frank disavowal of the conclusions arrived at by the "majority" of the Court and Judge Hand as to the meaning of the recent decisions of the Supreme Court involving the "clear and present danger" rule. After reviewing some of these cases and the language used therein, he says:

The precise meaning intended to be conveyed by these phrases need not now be pursued. It is enough to note that they have recurred in the Court's opinions, and their cumulative force has, not without justification, engendered belief that there is a constitutional principle, expressed by those attractive but imprecise words, prohibiting restriction upon utterance unless it creates a situation of "imminent" peril against which legislation may guard. It is on this body of the Court's pronouncements that the defendants' argument here is based.

*In all fairness, the argument cannot be met by reinterpreting the Court's frequent use of "clear" and "present" to mean an entertainable "probability".*¹²⁷ (Emphasis supplied).

It should also be added that Mr. Justice Frankfurter concludes his long opinion with some strong language evincing his dislike for the Smith Act and his conviction that it is contrary to our democratic faith. But he voted for affirmance upon a constitutional theory which differs radically from the doctrines laid down by the

126. *Id.* at 581.

127. *Id.* at 527.

Supreme Court in its recent decisions, and he says so frankly. This doctrine is, in substance, that the preservation of our democratic faith is primarily in the hands of Congress as the direct representative of the people, and not in the hands of the courts. It is true, argues Mr. Justice Frankfurter, that under our Constitution the Supreme Court has the power to declare legislation unconstitutional, but that supervisory power can only be exercised if there is *no reasonable relation* between the objectives which the Legislature has a right to pursue and the means adopted by it to accomplish such objectives. This is the test where statutes dealing with economics are under consideration; and such, contends Mr. Justice Frankfurter, should be the test applied to cases involving civil liberties. This means that the "clear and present danger" rule should not be applied to the present case. Since the objective, the prevention of the overthrow of the Government of the United States by force and violence, is within the constitutional power of Congress, the statute cannot be declared unconstitutional unless it be found that the suppression of the teaching and advocacy of the doctrines of Communism has no reasonable relation to that objective, and that Mr. Justice Frankfurter denies. Mr. Justice Frankfurter therefore disagrees with the decisions of the Supreme Court which seek to differentiate between economic legislation and legislation invading the freedoms guaranteed by the First Amendment, giving these freedoms a preferred position in such discussions.

The difficulty with Mr. Justice Frankfurter's position is that he overlooks one of the basic elements of the constitutional problem, *and the specific mandate* of the Constitution itself. The reason for the preferred position given by the Supreme Court to the freedoms guaranteed by the First Amendment is not merely that they are the very basis of our democratic system, which differentiates it from dictatorships, although that would be reason enough. Quite aside from the importance of preserving our democratic institutions, there is the specific constitutional mandate to be considered, a mandate which differentiates legislation invading civil liberties from ordinary economic legislation. Our Constitution consists of two parts which are utterly dissimilar.¹²⁸ First there is a general grant of power to Congress to legislate, subject to certain limitations, such as those

128. Boudin, *Majority Rule and Constitutional Limitations*, IV LAW. GUILD REV., Nos. 3, 4 (1944).

resulting from the division of governmental power between the States and the Federal Government, and certain specific limitations on the power of taxation. In dealing with economic legislation we therefore start out with the fact that *legislation is the proper function of Congress*. Therefore the presumption is that such legislation is constitutional, and he who asserts that it is not must prove affirmatively that Congress has exceeded the power granted to it by the Constitution.

But the situation is otherwise when we deal with the freedoms guaranteed by the First Amendment. Not only is there no grant of power to Congress to legislate on these subjects, *but there is a specific prohibition against the abridgement of these freedoms by legislation*. It is true that the prohibition is not absolute and there are certain exceptional situations which justify an invasion of these freedoms. But since the prohibition is the rule, the presumption is that legislation in any way abridging the freedoms guaranteed by the First Amendment is unconstitutional. Therefore, to sustain such legislation, it must be affirmatively proven that such legislation comes within the exceptions, such as the necessities of a war situation and the like. In order to prove that the legislation is within such exceptions those seeking to uphold the legislation must prove affirmatively that the means adopted by Congress, that is the abridgements imposed by the legislation, were necessary to accomplish the purpose which legitimatizes the invasion of these freedoms.

Obviously contemptuous of the vague generalities, evasions and equivocations indulged in by the "majority" and apparently unwilling to accept Mr. Justice Frankfurter's obviously unsound doctrine as to the equality of legislative action with respect to the two parts of the Constitution, Mr. Justice Jackson, the *enfant terrible* of the Supreme Court, boldly strikes out a revolutionary path. Basing himself on recent history, as did the "majority" of the Court and Judge Hand, *but giving it a different, not to say opposite, reading*, he decides that the "clear and present danger" rule, fashioned and formulated during a different historical period and for different purposes, does not apply during our present epoch to cases involving Communists. The times during which the doctrine was fashioned did not present any threat to the security of the United States, and the cases to which it was applied were "trivial" in their nature. He would therefore preserve the doctrine for such cases, but would not apply it to cases involving Communists, or at least the Communist Party.

I would save it, unmodified, for application as a "rule of reason" in the kind of case for which it was devised. When the issue is criminality of a hot-headed speech on a street corner, or circulation of a few incendiary pamphlets, or parading by some zealots behind a red flag, or refusal of a handful of school children to salute our flag, it is not beyond the capacity of the judicial process to gather, comprehend, and weigh the necessary materials for decision whether it is a clear and present danger of substantive evil or a harmless letting off of steam. It is not a prophecy, for the danger in such cases has matured by the time of trial or it was never present. . . . The formula in such cases favors freedoms that are vital to our society, and, even if sometimes applied too generously, the consequences cannot be grave. But its recent expansion has extended, in particular to Communists, unprecedented immunities. Unless we are to hold our Government captive in a judge-made verbal trap, we must approach the problem of a well-organized, nation-wide conspiracy, such as I have described, as realistically as our predecessors faced the *trivialities* that were being prosecuted until they were checked with a rule of reason.¹²⁹ (Emphasis supplied).

Before going into the reasons which were apparently most decisive with Mr. Justice Jackson in his vote for affirmance, and which are of particular importance in our connection, we must, in justice to Mr. Justice Jackson, point out that he has a second string to his bow, namely, the fact that the defendants at bar were convicted of a *conspiracy*, a word which to him seems to have magic qualities. A conspiracy, he says, is in itself a crime, and it is sufficient that people should have conspired to do something, to constitute this crime, even though the same thing committed by individuals may be perfectly innocent. He adds that a conspiracy is punishable even when nothing is done pursuant to it, since no overt act need be proven in order to make a conspiracy criminal. Both of these propositions are of doubtful legal validity, to say the least. On the first proposition Mr. Justice Jackson overlooks the fact that the definition of a conspiracy is that the persons charged with the crime have combined to commit an *unlawful* act, or a lawful act by *unlawful* means. It is true that frequently acts which if committed by an individual would be considered lawful may be unlawful when committed by a number of people pursuant to an agreement to do

129. *Dennis v. United States*, 341 U.S. 494, 568 (1951).

so, but that is due to the fact that certain acts cannot be harmful unless committed by a sufficient number of persons, the degree of the harm frequently depending on the number of persons who engage in the action. Obviously, a boycott cannot be committed by one person or a very small number of persons. In order, therefore, for anyone to be guilty of the tort or crime of boycott, there must be an agreement among a sufficiently large number of persons to make their refusal to deal with the boycotted person harmful enough to permit the law to take notice of it.

In support of his subsequent proposition Mr. Justice Jackson cites the case of *Nash v. United States*.¹³⁰ The *Nash* case was an indictment charging a violation of the Sherman Act. That Act can obviously be violated by merely *refraining* from doing something, such as *not* competing or *not* reducing prices, just as a boycott can be accomplished by merely *not* dealing with the boycotted person. In this class of cases the mere agreement, and conspiracy is merely another word for agreement, is sufficient to constitute the harmful or illegal act, since its harmful purpose can be accomplished by merely doing nothing. Obviously, a rule with respect to overt acts applied to such a case cannot possibly be applicable to a case in which the essence of the crime is *harmful action*. Mr. Justice Douglas therefore had no difficulty in disposing of the second string to Mr. Justice Jackson's bow.

We may now turn to Mr. Justice Jackson's *piece de resistance*, the reasons given by him for the non-applicability of the "clear and present danger" rule to cases involving communism. That, as we have already stated, is based upon his reading of recent history, and can therefore be most profitably discussed in connection with the reading of the same history by Judge Learned Hand and the "majority" of the Supreme Court, since they too based their reformulation of the "clear and present danger" rule on that history.

XI. RECENT HISTORY AND THE "CLEAR AND PRESENT DANGER" RULE

If the history in Judge Learned Hand's opinion and in the "majority" opinion of the Supreme Court, adduced as the reason for the reformulation of the "clear and present danger" rule, has any meaning, it is this: the history of the last "thirty years or more" proves

130. 229 U.S. 373 (1913).

that the Communist Party of each country constitutes a well disciplined organization whose purpose is to overthrow the government of its country by force and violence; that it lies in wait for an opportunity to do so; and that the Communist Parties of some European countries have actually seized such opportunities in order to overthrow their legitimately established governments by force and violence. The first of these was the Russian Communist (Bolshevik) Party; and this was followed by similar action in a number of European countries, commonly referred to as the countries "behind the Iron Curtain." However, a careful examination of what actually happened in Europe since 1917 will prove conclusively that this reading of the history of our times is purely legendary or fictional. The legend commences with the so-called Bolshevik revolution of November 7, 1917, and has been gradually extended westward to and including the alleged *coup d'état* whereby the Communists are supposed to have obtained power in Czechoslovakia in February, 1948. The legend with respect to the Bolshevik revolution of 1917 was invented by the Communists for obvious reasons: it was to their interest to give the Bolshevik Party credit for the creation of the "mighty" Soviet Union and it served as an excuse for the demand for rigid discipline within the parties of other countries. And the spread of the legend was helped by anti-Communists, partly because of sheer ignorance as to what actually happened, and partly because it serves the purpose of anti-Communist propaganda to create the belief that a small, well disciplined party can create a revolution. We have been saved the necessity of proving the purely legendary and fictional character of this "history" of the Bolshevik revolution by Mr. Justice Jackson, who is apparently better informed on this subject than his brethren on the Supreme Court or Judge Learned Hand. Here is what Justice Jackson has to say on this subject:

The Czar's government, in February 1917, literally gave up, almost without violence, to the Provisional Government, because it was ready to fall apart from its corruption, ineptitude, superstition, oppression and defeat. The revolutionary parties had little to do with this and regarded it as a *bourgeoisie* triumph. Lenin was an exile in Switzerland, Trotsky in the United States, and Stalin was in Siberia. The Provisional Government attempted to continue the war against Germany, but it, too, was unable to solve internal problems and its Galician campaign failed with heavy losses. By October, its prestige and influence sank so low that it *could not continue*. Meanwhile,

Lenin and Trotsky had returned and consolidated the Bolshevik position around the Soviets, or trade unions. *They simply took over power in an almost bloodless revolution. . . .*¹³¹ ("bourgeoisie" italicized in original: other emphasis supplied).

That none of the "revolutions", whatever they were in the "behind the Iron Curtain" countries, were affected by the overthrowing of existing legitimately constituted governments by the Communist Parties with the use of force and violence is too well known to require re-hashing here. In all of those countries the governments which had existed prior to World War II were destroyed by the German invasion; and the governments established by the Germans were, in their turn, overthrown by the Russian armies. The Communist Parties of those countries had nothing to do with these overthrows, and were established in power by the Russian armies. This was the case in every "behind the Iron Curtain" country, including Czechoslovakia. But, significantly enough, those countries were not originally established as Communist regimes, but rather as coalition governments of all "democratic" elements. The power which the Communists ultimately acquired was obtained gradually by *strictly legal means* as legality is understood in revolutionary times, and particularly in the shadow of the Russian armies. The fact is that the Communists have taken a leaf out of Hitler's book, a leaf which required the observance of strict legality in *obtaining* power, whatever use may thereafter be made of it. This was true even in the so-called *coup d'etat* in Czechoslovakia in February, 1948. Here is what Mr. Justice Jackson has to say of that event:

But Communist technique in the overturn of a free government was disclosed by the *coup d'etat* in which they seized power in Czechoslovakia. There the Communist Party during its preparatory stage claimed and received protection for its freedoms of speech, press, and assembly. Pretending to be but another political party, it eventually was conceded participation in government, where it entrenched reliable members chiefly in control of police and information services. When the government faced a foreign and domestic crisis, the Communist Party had established a leverage strong enough to threaten civil war. In a period of confusion the Communist plan unfolded and the underground organization came to the surface throughout the country in the form chiefly of labor "action committees." Communist

131. *Dennis v. United States*, 341 U.S. 494, 565 n.7 (1951).

officers of the unions took over transportation and allowed only persons with party permits to travel. Communist printers took over the newspapers and radio and put out only party-approved versions of events. Possession was taken of telegraph and telephone systems and communications were cut off wherever directed by party heads. Communist unions took over the factories, and in the cities a partisan distribution of food was managed by the Communist organization. *A virtually bloodless abdication by the elected government admitted the Communists to power*, whereupon they instituted a reign of oppression and terror, and ruthlessly denied to all others the freedoms which had sheltered their conspiracy.¹³² (Emphasis supplied).

This account is substantially true, although somewhat inaccurate in detail, owing to the fact that Mr. Justice Jackson's reading apparently did not include the latest and most authoritative account of what actually happened in Czechoslovakia, Mr. Hubert Ripka's *Czechoslovakia Enslaved*. Mr. Ripka was a member of the Benes cabinet at the time of the supposed *coup d'etat* and the leader of the anti-Communist faction in the cabinet. What he says conclusively demonstrates that the Communists acquired power in Czechoslovakia in exactly the same manner as Hitler acquired power in Germany in January, 1933. Hitler acquired power by the grace of Marshal Hindenburg, who installed him in office as Chancellor of the German Reich. The Communists acquired power in Czechoslovakia by the grace of President Benes, who installed them in power in accordance with the constitution of Czechoslovakia, or what was supposed to be its constitution.¹³³

That the Communists were not ready to overturn a legitimately established government by force and violence even in times of crisis, and certainly could not do so, is further shown by the fact that although the German Communist Party was the strongest Communist

132. *Id.* at 566.

133. Actually there was no strictly constitutional government in Czechoslovakia at the time. The Constitution of the country before Hitler marched into Prague in the spring of 1939 was overturned by that march; and the "constitution," whatever it may have been, installed by Hitler, was put to an end by the "liberation" of Prague by the Russian armies in the spring of 1945. The Benes government was installed in office by that army. During the intervening three year period the government was "provisional," existing by the sufferance of the Russian army which always hovered in the offing. The question of what kind of constitution should be ultimately adopted was being hotly debated on the eve of the "abdication" which resulted in the Communist assumption of power.

group outside of Russia in 1932¹³⁴ it yet did not attempt to prevent Hitler's assumption of power by using its supposedly well disciplined organization, and this notwithstanding the existence of the "mighty" Soviet Union. Further, it must be borne in mind that Hitler assumed power in a time of economic crisis, a crisis which embraced the entire capitalist world, when there were six million unemployed in Germany.¹³⁵ Nor did they attempt to institute revolution in any country of Western Continental Europe where their parties had more adherents and their influence in the labor movement was far greater than they could hope to have or possess in the United States at any time in the near future. That the puny American party with its meager influence in the United States never dreamed of instituting a revolution when we were in the same economic crisis is, of course, a matter of history. This, notwithstanding the fact that at that time (1) they enjoyed a certain amount of respectability, at least among the intellectuals; (2) the number of unemployed in this country was between twelve and fifteen millions; and (3) the farmers of Iowa and other communities were in revolt, though not in revolution. In short, in the words of Justice Brandeis, this country was "confronted with an emergency more serious than war."¹³⁶

That the Communist Party is now even less influential than ever before is sufficiently demonstrated by the fact that notwithstanding its reconstitution in 1945 as a political party, it has, nonetheless, never deemed it advisable to run a presidential candidate, or any other candidate as far as we know. Further, when it joined with well-known liberals in the organization of the Progressive Party, and that party ran as its candidate a former Vice-President of the United States, the combination succeeded in polling only a paltry 1,250,000 votes, or about two percent of the total vote.

Mr. Justice Jackson knows all this, of course. It is for that reason that he could not join his associates of the "majority" in affirming the conviction on the ground that there was *any* degree of probability that the Communists of this country could overthrow the Government of the United States by force and violence. But he did join in affirming the conviction. This he did on the novel and startling

134. The Party polled some five million votes in the presidential election of 1932 out of a total of thirty-five millions, or about fifteen percent of the total vote.

135. Percentage-wise this figure would represent twelve million unemployed in the United States.

136. *New State Ice Co. v. Liebman*, 285 U.S. 262, 306 (1931).

theory that the danger from the Communists in the United States is not that they will overthrow our Government by force and violence but that they may successfully repeat in this country the tactics which they pursued in the "behind the Iron Curtain" countries, with the result that the leaders of our democracy will "abdicate" power in their favor. This, he says, requires the abandonment of the "clear and present danger" rule which was devised to meet a threat of force and violence, and the application of a rule suited to meet the threat of assumption of power by the use of cunning. After giving his version of what happened in Czechoslovakia, he says:

The foregoing is enough to indicate that, either by accident or design, the Communist stratagem *outwits* the anti-anarchist pattern of statute aimed against "overthrow by force and violence" *if qualified by the doctrine that only "clear and present danger" of accomplishing that result will sustain the prosecution.*¹³⁷ (Emphasis supplied).

Nor, says Mr. Justice Jackson, can the courts devise any other rule of constitutionality to substitute in place of the "clear and present danger" rule. "The judicial process simply is not adequate to a trial of such far-flung issues."

Hence his conclusion that the "clear and present danger" rule may be saved as it has been developed by the courts in recent decisions, but applied only to trivial cases. On the other hand, the serious threat presented by the Communist "stratagem" whereby it may "out-wit" our statesmen must be left to Congress to deal with as its wisdom dictates, including statutes prohibiting the *teaching and advocacy* of objectionable doctrines.

This bold cutting of the Gordian knot, like all such operations, has the quality of simplicity to recommend it. Unfortunately, the sword whereby the knot is cut is the sword of totalitarianism, or something very near it, notwithstanding the recommended saving of the "clear and present danger" rule for "trivial" cases. Nor is there any real reason for our instituting a "preventive" totalitarianism in order to forestall Communist totalitarianism. Although Mr. Justice Jackson's reading of recent history is more correct than that of his associates of the "majority," his conclusions that the United States is confronted with a danger which cannot be met by the "clear and

137. *Dennis v. United States*, 341 U.S. 494, 567 (1951).

present danger" rule contains assumptions which are no less fantastic than those of the "majority."

A sober reading of recent history clearly demonstrates that there is no more danger of the Communists of this country out-witting our statesmen and obtaining power by cunning, than there is that they will overthrow the government by force and violence. Quite aside from the fact already pointed out that all the "abdications" of power into the hands of the Communists which have taken place in Eastern and Central Europe since World War II were forced by the Russian army, or by the threat of calling in the Russian army, it must be borne in mind that none of those countries had ever known real democratic government; and that in Czechoslovakia, which had enjoyed democratic government for a short period, the situation was *sui generis*.¹³⁸ But even more important in all this is the fact that our form of government makes the handing over of power either to Fascists or Communists, such as occurred in Germany and in Czechoslovakia, utterly impossible. In none of those countries did the head of the government have any executive power. His only function, aside from purely ceremonial functions, was the power to appoint the real executive—the Chancellor, as in Germany, or the cabinet, as in Czechoslovakia. Marshal Hindenburg, himself a conservative, and elected by a coalition consisting of conservatives, liberals and socialists, was powerless to prevent Hitler from carrying out his revolution after he had been legally installed in power. The same is true of Dr. Benes, who probably hoped when calling the Communists to power that they would use that power moderately. No such situation could possibly arise in this country, where we have *Presidential Government*, that is to say, where the head of the

138. It should be pointed out that quite aside from the unsettled conditions of the country as the result of the Hitler invasion and the Russian liberation there was the additional difficulty that Czechoslovakia was not a "national state," but was a composite of several nations, each occupying a specific territory. The most important of these nations were the Czechs and the Slovaks and these two nations were engaged in an almost continuous struggle during the entire existence of the state, Slovakia being in a continuous condition of latent revolt against Czech domination. This was an important factor in making the Hitler subjugation of Czechoslovakia easier; and it was also an important factor in keeping the "liberated" state without a constitution for three years. Not only were the parties unable to agree on the nature of the new constitution, but the Slovaks would not agree to a constitution which failed to give them equality with the Czechs. It was only after the Communists assumed power that the latter question was settled in the usual Communist manner.

Government has the executive power in his own hands. It should be borne in mind that the President of the United States is also Commander in Chief of the Army, that every department of Government is under his absolute control, and that he can change their heads at will, subject only to confirmation by the Senate. Furthermore, coalition government, the entering wedge which gave the Communists a leverage on the government of which they were a part, and which they could use in times of crisis, is utterly unknown and actually impossible under our system of government. When Mr. Roosevelt appointed Mr. Henry L. Stimson Secretary of War and Mr. Frank Knox Secretary of the Navy, our Government did not thereby become a "coalition" government of Democrats and Republicans, for he could at any time displace them if they failed to carry out his ideas. So much for the danger conjured up by Mr. Justice Jackson. We now pass to the application of his doctrine, grounded upon this alleged danger, on which he based his affirmance of the conviction of the defendants in the case at bar.

Assuming that the Constitution of the United States permits Congress to outlaw the teaching and advocacy of certain doctrines, it is a sufficient answer to the application of that doctrine to the instant case that *Congress has not made it criminal to teach the doctrine of out-witting our statesmen by cunning, but only the overthrow of the Government of the United States by force and violence*. Such is the express language of the statute; and the "majority" of the Court expressly found that the statute here under consideration is modeled after the "anarchist" statute of New York, which, it has been judicially determined, was intended to prevent the use of force and violence.¹³⁹ Nor does Mr. Justice Jackson deny it. His criticism is in effect directed not only to the "clear and present danger" rule, but against the kind of statute to which it was being applied. But the defendants at bar were not convicted under a statute outlawing the assumption of power by wit and cunning. *Under the instructions of the judge presiding at the trial, they were convicted under a statute prohibiting the use of force and violence*. Whatever may be said of the "clear and present danger" rule, ours is still a Government of laws, a Government of laws made by the Legislature, at least theoretically. Under our laws no one can be imprisoned except after a trial upon a charge formulated in an indictment and by the

139. See *Dennis v. United States*, 391 U.S. 494, 505-7 (1951); see page 158, *supra*.

application of *due process*, which includes the finding of guilt by a jury after a statement to it by the Court of the true meaning of the statute upon which the indictment is founded, and upon proof of the facts necessary to sustain the indictment under the statute as construed by the Court. Mr. Justice Jackson may believe that his reading of our Constitution is the correct one, but he cannot believe that this is the theory upon which the defendants at bar were convicted, or that there was any proof to sustain a conviction upon that theory. Whatever excuse there may be for the majority refusal to examine the evidence for its sufficiency upon the theory of law formulated by Chief Justice Vinson, there is no possible excuse for Mr. Justice Jackson's disregarding the theory upon which the trial court submitted the case to the jury, and the fact that the Court of Appeals affirmed the conviction upon that same theory.

XII. THE "CLEAR AND PRESENT DANGER" RULE AND THE RIGHT TO TRIAL BY JURY

Although our main interest is in the continued existence and content of the "clear and present danger" rule, there is one other basic constitutional problem which this case raises that must be considered here, that is the question of *who is to pass* on the presence of a "clear and present danger," since that raises a point fundamental in our entire system of jurisprudence, that of trial by jury. This question, too, has been treated in three different ways in the three courts in which the case was heard, and each deserves separate attention.

As already pointed out, Judge Medina proceeded upon the theory that the "clear and present danger" rule does not apply to the case.¹⁴⁰ He therefore instructed the jury that if they found the facts which the statute makes criminal, namely the formation of a conspiracy to overthrow the Government of the United States by force and violence at the first opportune moment, then the constitutionality of the statute, that is to say the right of Congress to make such action criminal, is a question of law for him to decide. He, therefore, decided as a matter of law that the statute was constitutional, and left to the jury the decision of the only question of fact in the case, namely, the formation and purpose of the conspiracy. On his own theory, we believe, Judge Medina was correct. Since the "clear and present danger rule"

140. See page 327, *supra*.

does not apply, there was nothing to submit to the jury on that score. Furthermore, there was no evidence in the case upon which the jury could base a finding of the presence of a "*clear and present danger*" of a "*substantive evil*." It is incorrect to assert, as was done by the Court of Appeals and the Supreme Court and has been assumed by others in the discussion of this case, that Judge Medina decided the presence of a "*clear and present danger*" as a matter of law. He did no such thing, since that question was not in the case under his construction of the statute.

The situation was, of course, different in the Court of Appeals and in the Supreme Court, since both courts held that the "*clear and present danger*" rule would apply. Again, it would be unprofitable as well as painful to follow Judge Hand's labored reasoning that the presence or absence of a "*clear and present danger*" of a substantive evil is a question of law to be decided by the Court. We shall, therefore, only refer briefly to two points made by him in holding that that was a question of law. First, he held that the substantive evil, being of a "*momentous*" character, cannot be left to the decision of a jury, and must therefore be passed upon by the Legislature itself or by the Court as its "*surrogate*."¹⁴¹ Second, he stated that to submit to the jury the question of "*clear and present danger*" might lead to different decisions by different juries and therefore make a uniform construction of the statute impossible.¹⁴² The short answer to the first point is that this reasoning leads logically to the exclusion of the "*clear and present danger*" rule from the case altogether; further, there is nothing in the statute to indicate that the Legislature intended to appoint the Court as its "*surrogate*" for the determination of this question. The second point can also be briefly disposed of, since different decisions by different juries as to the guilt or innocence of persons charged with violating a given statute has nothing to do with the certainty of the meaning of that statute or with "*uniformity*" of construction. In addition, since the application of the "*clear and present danger*" rule makes the actual decision dependent upon the presence or absence of such danger, the decisions must of necessity be diverse whether made by court or jury, since they must depend upon findings of fact in each case. The serious consequences of Judge Hand's decision can best be con-

141. *United States v. Dennis*, 183 F.2d 201, 216 (1950).

142. *Ibid.*

sidered in connection with what the "majority" of the Supreme Court had to say on this subject.

The argument that the action of the trial court is erroneous, in declaring as a matter of law that such violation shows sufficient danger to justify the punishment despite the First Amendment, rests on the theory that a jury must decide a question of the application of the First Amendment. We do not agree.

*When facts are found that establish the violation of a statute, the protection against conviction afforded by the First Amendment is a matter of law. The doctrine that there must be a clear and present danger of a substantive evil that Congress has a right to prevent is a judicial rule to be applied as a matter of law by the courts. The guilt is established by proof of facts. Whether the First Amendment protects the activity which constitutes the violation of the statute must depend upon a judicial determination of the scope of the First Amendment applied to the circumstances of the case.*¹⁴³ (Emphasis supplied).

This states the issue involved incorrectly and begs the real question. The question is *not* the extent of the protection offered by the First Amendment. That is, of course, a question of law which is decided by the Court when it holds that the "clear and present danger" rule applies. The statute says nothing about the "clear and present danger" rule; it is the Court that raises the rule, by interpreting the protection which the First Amendment offers. Having made the decision that the "clear and present danger" rule applies, *guilt* under the statute is made dependent upon the presence of a clear and present danger of a substantive evil. By the decision that the "clear and present danger" rule applies, the statute is, in effect, made to read as follows:

Whoever knowingly or wilfully advocates, abets, advises, or teaches, the duty, necessity, desirability, or propriety of overthrowing or destroying the government of the United States, *when that constitutes a clear and present danger that such teaching or advocacy will result in the overthrow of the government of the United States by force and violence, . . . or*

Whoever organizes or helps or attempts to organize, any society, group, or assembly of persons who teach, advocate, or encourage the

143. *Dennis v. United States*, 341 U.S. 494, 513 (1951).

overthrow or destruction of any such government by force or violence, *when that constitutes a clear and present danger*, etc.;
 Shall be fined, etc. . . .

The finding of a "clear and present danger" of the substantive evil is thus the *crucial* fact upon which the finding of guilt depends. That the finding of such fact cannot possibly be a matter for the court under the constitutional guaranty of trial by jury would seem self-evident. Since, however, the Supreme Court has decided otherwise, it becomes necessary to discuss the question more fully.

The discussion is best begun by considering the respective functions of court and jury in criminal cases. There was a time when the accepted doctrine was that, in criminal cases, the jury was the judge of both the law and the facts. The trial judge was the official advisor of the jury as to the law; but the jury was free to accept his advice or reject it. The court could not therefore instruct the jury that they must find a defendant guilty even where there was no real conflict in the evidence. Although the uncontradicted evidence was such as to make the defendant guilty of the crime charged, it was still necessary to submit the case to the jury, and the jury could still *acquit*. We have now departed from this *formulation* of the theory, but its *substance* still remains basic in our law. The *ultimate decision* of both law and fact is still with the jury. *That is why the court has still no right to direct a conviction. Nor can the Government appeal from the jury's acquittal on the ground that there was no conflict in the evidence and that the evidence clearly established guilt beyond a reasonable doubt. Nor, we submit, can the judge take away from the jury a crucial fact necessary to the finding of guilt.*

That does not mean that the judge has no function in the determination of questions of fact. Quite the contrary: every question of fact the finding of which is necessary to conviction comes up first as a question of law for the decision of the Court. Before the case may be submitted to the jury, the Court must find that there is sufficient evidence upon which the jury could base a verdict of guilty. If, in the opinion of the Court, there is not sufficient evidence of *any* fact the presence of which is necessary for the finding of guilt, it must order an acquittal. If the court does not so find the jury must find the presence of sufficient evidence *of all the facts* upon which guilt may be predicated. Thus, the ultimate determination of the presence of such facts is within the province of the jury. The

law on this subject is clear. We do not know of any decision to the contrary prior to the decision in the present case.

After rejecting the argument of counsel for the defendants, in the passage quoted above, the "majority" of the Supreme Court followed this up by saying:

Petitioners' reliance upon Justice Brandeis' language in his concurrence in *Whitney*, 274 U.S. 357, *supra*, is misplaced. In that case Justice Brandeis pointed out that the defendant could have made the existence of the requisite danger the important issue at her trial, but that she had not done so. In discussing this failure, he stated that the defendant could have had the issue determined by the court *or* the jury. No realistic construction of this disjunctive language could arrive at the conclusion that he intended to state that the question was *only* determinable by a jury. Nor is the *incidental* statement of the majority in *Pierce*, 252 U.S. 239, *supra*, of any more persuasive effect.¹⁴⁴ ("or" and "only" italicized in original).

The disjunctive "or" in Justice Brandeis' opinion is clearly too broken a reed to support the heavy burden of so fundamental a departure from established law, and the abandonment of one of the basic constitutional guarantees of personal freedom. This would be so even if the disjunctive had actually meant what the "majority" of the Supreme Court made it mean, since the point Justice Brandeis was making was that Miss Whitney had *not* raised the point in the court below in *any* form. The question of "court" or "jury" would therefore really be "incidental." But actually the disjunctive "or" was used properly by Justice Brandeis. For, as already pointed out, the presence of "clear and present danger" is a question for *both* court and jury. And we shall see further that Justice Brandeis himself has written lucidly on this subject in another case, which leaves no doubt as to what he meant to say in the *Whitney* case. Before referring to this other case we must, however, quote here what Mr. Justice Douglas had to say on the subject, and what he thought of the "incidental" statement of the Court in the *Pierce* case:

I had assumed that the question of the clear and present danger, being so critical an issue in the case, would be a matter for submission to the jury. It was squarely held in *Pierce v. United States*, 252 U.S. 239, to be a jury question. Mr. Justice Pitney, speaking for the

144. *Id.* at 513, 514.

Court, said, "Whether the statement contained in the pamphlet had a natural tendency to produce the forbidden consequences, as alleged, was a question to be determined not upon demurrer but by the jury at the trial." That is the only time the Court has passed on the issue. None of our other decisions is contrary. Nothing said in any of the nonjury cases has detracted from that ruling. The statement in *Pierce v. United States*, *supra*, states the law as it has been and as it should be. The Court, I think, errs when it treats the question as one of law.¹⁴⁵

And now, an authoritative statement by Justice Brandeis conclusively establishes the fact that the "majority" of the Supreme Court have misread his remark in the *Whitney* case. In *Schaefer v. United States*, Justice Brandeis, speaking for himself and Justice Holmes, wrote:

The question whether, in a particular instance the words spoken or written fall within the permissible curtailment of free speech is, under the rule enunciated by this court, one of degree. And because it is a question of degree the field in which the jury may exercise its judgment is, necessarily, a wide one. But its field is not unlimited. The trial provided for is one by judge *and* jury; and the judge may not abdicate his function. If the words were of such a nature and were used under such circumstances that men, judging in calmness, could not reasonably say that they created a clear and present danger that they would bring about the evil which Congress sought and had a right to prevent, then it is the duty of the trial judge to withdraw the case from the consideration of the jury; and if he fails to do so, it is the duty of the appellate court to correct the error.¹⁴⁶

This statement was made in a dissenting opinion. But the division in the Court was not over the question whether the ultimate finding of a clear and present danger is a question for the jury where there is sufficient evidence upon which such finding may be based, but rather, whether in this particular case there was enough evidence upon which such a finding could be made by the jury.

Nor is the question discussed above the only one involved in the question of a trial "by judge *and* jury." Whether the matter is being passed upon by the judge or the jury, *the decision must be based*

145. *Dennis v. United States*, 341 U.S. 494, 587 (1951).

146. 251 U.S. 466, 483 (1920).

upon evidence adduced at the trial and contained in the record. Otherwise there would be no way for the appellate court to determine the correctness of the finding. It is elementary in our criminal law that the reviewing court can only review on the record made in the case; and it cannot supply any missing element in the case by its knowledge *de hors* the record, even where the matter involved is one of undisputed fact. So, for instance, in a conviction for larceny in a case in which the statute divides the offense into degrees, a higher punishment being provided where the larceny is made at night, a conviction for that degree of larceny could not be sustained upon a record in which there is no evidence as to the time when the larceny was committed, even though the appellate court may know, *de hors* the record, that the larceny had been committed in the night time.

Nor does the introduction of the element of judicial notice in another connection by Mr. Justice Frankfurter have any significance in connection with the immediate problem before us here. It is, of course, true that the Court may take judicial notice of certain undisputed facts of history. But we know of no rule of law, and we are confident that there is none, whereby a criminal conviction may be sustained, under *any* aspect of the case, by the Court's *reading* of the *meaning* of history. The *meaning* of history, even where the facts are undisputed, is always a matter of controversy as any student of history knows. And in the present case we have two versions of recent history officially stated on the record, one by the Chief Justice and those who joined in his opinion and the other by Mr. Justice Jackson; two versions so utterly different as to require different constructions of the meaning of the First Amendment in legislation against, and trials of, Communists. Whose version of history may the Court take judicial notice of—that of Chief Justice Vinson or that of Mr. Justice Jackson? As far as we know, judges are not specialists in history. They could, therefore, not take notice of the meaning of history in any event, since history is a special study in which judges are no more presumed to be versed than laymen. Therefore, if a conviction may be based upon recent history, the meaning of that history should be treated as all such questions are treated in both civil and criminal cases, namely, by having experts testify as to their opinions, with the matter then being decided by the Court in the first instance as to the sufficiency of the evidence to permit the case to go to the jury, and by the jury as to the ultimate fact. That the defendants could have produced

expert testimony to refute the version of recent history upon which the "majority" based their affirmance is evident. Quite aside from the opinion of Mr. Justice Jackson, here is what a professional historian has to say on the subject:

In fact no Communist movement in this century has, solely by its own efforts, captured or destroyed the state machine. In three cases only Communists have seized power—in Russia, Yugoslavia and China. But in all three cases the state machine was smashed not by the revolutionaries but by a foreign invading Power. . . . In Czechoslovakia the presence of Russian forces in 1943 made possible the seizure by the Communists of the key posts which enabled them to seize power three years later. In 1948 the signal for action was given by Moscow, and the presence of Russian troops round four-fifths of Czechoslovakia's frontiers was a decisive factor. Gottwald's "*February revolution*" was made by the police. It can be compared with Mussolini's march on Rome by sleeping-car in 1922, and still more closely with Hitler's elevation to the German Chancellorship and subsequent elimination of his opponents in 1933. The roles of the ailing President Hindenburg and the ailing President Benes are strongly similar.¹⁴⁷

It is therefore clear that the Court has actually abolished trial by jury in "sedition" cases under the guise of deciding a procedural question as to the functions of judge and jury, or has attempted to do so. Such attempts are not a novelty in sedition cases. One of the greatest struggles in the history of freedom was waged about this very point, the respective functions of court and jury in so-called seditious libel cases. That struggle ended in England with the passage of Fox's Libel Act of 1792; and in this country, with the adoption by states of statutes or constitutional provisions which, so we thought, forever did away with the attempt of the courts to decide what makes utterances seditious. And it is an ominous fact that in this reversion to the situation which existed before Fox's Libel Act, one of the courts used the very language which was used to justify the

147. Seton-Watson, *Twentieth Century Revolution*, 22 POL. Q. 251, 259 (1951). Mr. Seton-Watson, while stating the facts correctly, is, in our opinion, rather soft on both Hindenburg and Benes. While it is true that Benes was ill at the time he turned over governmental power to the Communists, it is also a fact that one of his "ailments" was his pro-Russian bias which is evidenced by the fact that he was the only head of a London government in exile to be put in power in his own country by the Russians.

evil which the Fox Libel Act was intended to cure. As we have seen, Judge Learned Hand, in his attempt to justify the decision of the Court of Appeals that the presence or absence of the "clear and present danger" rule is a question of law, appealed to the "momentous public interests" involved. That was exactly the argument which had been used to sustain the vicious doctrine which prevailed in England prior to the enactment of the Fox Libel Act.

We cannot leave the discussion of this tragic case without quoting the concluding paragraph of Mr. Justice Black's brief but pointed opinion, expressing as it does our hope for the future:

Public opinion being what it now is, few will protest the conviction of these Communist petitioners. There is hope, however, that in calmer times, when present pressures, passions and fears subside, this or some later Court will restore the First Amendment liberties to the high preferred place where they belong in a free society.¹⁴⁸

148. *Dennis v. United States*, 341 U.S. 494, 581 (1951).